4. THE name of *vice-comes* or *viſcount* was afterwards made uſe of as an arbitrary title of honour, without any ſhadow of office pertaining to it, by Henry the ſixth; when in the eighteenth year of his reign, he created John Beaumont a peer, by the name of viſcount Beaumont, which was the firſt inſtance of the kind[i].

5. A *baron*'s is the moſt general and univerſal title of nobility; for originally every one of the peers of ſuperior rank had alſo a barony annexed to his other titles[k]. But it hath ſometimes happened that, when an antient baron hath been raiſed to a new degree of peerage, in the courſe of a few generations the two titles have deſcended differently; one perhaps to the male deſcendants, the other to the heirs general; whereby the earldom or other ſuperior title hath ſubſiſted without a barony: and there are alſo modern inſtances where earls and viſcounts have been created without annexing a barony to their other honours: ſo that now the rule does not hold univerſally, that all peers are barons. The original and antiquity of baronies has occaſioned great enquiries among our Engliſh antiquarians. The moſt probable opinion ſeems to be, that they were the ſame with our preſent lords of manors; to which the name of court baron, (which is the lord's court, and incident to every manor) gives ſome countenance. It may be collected from king John's *magna carta*[l], that originally all lords of manors, or barons, that held of the king *in capite*, had ſeats in the great council or parliament, till about the reign of that prince the conflux of them became ſo large and troubleſome, that the king was obliged to divide them, and ſummon only the greater barons in perſon; leaving the ſmall ones to be ſummoned by the ſheriff, and (as it is ſaid) to ſit by repreſentation in another houſe; which gave riſe to the ſeparation of the two houſes of parliament[m]. By degrees the title came to be confined to the greater barons, or lords of parliament only; and there

[i] 2 Inſt. 5.
[k] 2 Inſt. 5, 6.
[l] *cap.* 14.
[m] Gilb. hiſt. exch. c. 3. Seld. tit. of hon. 2. 5. 21.

were no other barons among the peerage but ſuch as were ſummoned by writ, in reſpect of the tenure of their lands or baronies, till Richard the ſecond firſt made it a mere title of honor, by conferring it on divers perſons by his letters patent [n].

HAVING made this ſhort enquiry into the original of our ſeveral degrees of nobility, I ſhall next conſider the manner in which they may be created. The right of peerage ſeems to have been originally territorial; that is, annexed to lands, honors, caſtles, manors, and the like, the proprietors and poſſeſſors of which were (in right of thoſe eſtates) allowed to be peers of the realm, and were ſummoned to parliament to do ſuit and ſervice to their ſovereign: and, when the land was alienated, the dignity paſſed with it as appendant. Thus the biſhops ſtill ſit in the houſe of lords in right of ſucceſſion to certain antient baronies annexed, or ſuppoſed to be annexed, to their epiſcopal lands [o]: and thus, in 11 Hen. VI, the poſſeſſion of the caſtle of Arundel was adjudged to confer an earldom on it's poſſeſſor [p]. But afterwards, when alienations grew to be frequent, the dignity of peerage was confined to the lineage of the party ennobled, and inſtead of territorial became perſonal. Actual proof of a tenure by barony became no longer neceſſary to conſtitute a lord of parliament; but the record of the writ of ſummons to them or their anceſtors was admitted as a ſufficient evidence of the tenure.

PEERS are now created either by writ, or by patent: for thoſe who claim by preſcription muſt ſuppoſe either a writ or patent made to their anceſtors; though by length of time it is loſt. The creation by writ, or the king's letter, is a ſummons to attend the houſe of peers, by the ſtile and title of that barony, which the king is pleaſed to confer: that by patent is a royal grant to a ſubject of any dignity and degree of peerage. The creation by writ is the more antient way; but a man is not ennobled thereby, unleſs he actually takes his ſeat in the houſe of

[n] 1 Inſt. 9. Seld. *Jan. Angl.* 2. §. 66.
[o] Glanv. *l.* 7. *c.* 1.
[p] Seld. tit. of hon. b. 2. c. 9. §. 5.

lords:

lords: and therefore the moſt uſual, becauſe the ſureſt, way is to grant the dignity by patent, which enures to a man and his heirs according to the limitations thereof, though he never himſelf makes uſe of it[q]. Yet it is frequent to call up the eldeſt ſon of a peer to the houſe of lords by writ of ſummons, in the name of his father's barony: becauſe in that caſe there is no danger of his children's loſing the nobility in caſe he never takes his ſeat; for they will ſucceed to their grand-father. Creation by writ has alſo one advantage over that by patent: for a perſon created by writ holds the dignity to him *and his heirs*, without any words to that purport in the writ; but in letters patent there muſt be words to direct the inheritance, elſe the dignity enures only to the grantee for life[r]. For a man or woman may be created noble for their own lives, and the dignity not deſcend to their heirs at all, or deſcend only to ſome particular heirs: as where a peerage is limited to a man, and the heirs male of his body by Elizabeth his preſent lady, and not to ſuch heirs by any former or future wife.

LET us next take a view of a few of the principal incidents attending the nobility, excluſive of their capacity as members of parliament, and as hereditary counſellors of the crown; both of which we have before conſidered. And firſt we muſt obſerve, that in criminal caſes, a nobleman ſhall be tried by his peers. The great are always obnoxious to popular envy: were they to be judged by the people, they might be in danger from the prejudice of their judges; and would moreover be deprived of the privilege of the meaneſt ſubjects, that of being tried by their equals, which is ſecured to all the realm by *magna carta*, c. 29. It is ſaid, that this does not extend to biſhops; who, though they are lords of parliament, and ſit there by virtue of their baronies which they hold *jure eccleſiae*, yet are not ennobled in blood, and conſequently not peers with the nobility[s]. As to peereſſes, no proviſion was made for their trial when accuſed of treaſon or

[q] Co. Litt. 16.
[r] Co. Litt. 9 16.
[s] 3 Inſt. 30, 31.

felony,

felony, till after Eleanor dutcheſs of Glouceſter, wife to the lord protector, had been accuſed of treaſon and found guilty of witchcraft, in an eccleſiaſtical ſynod, through the intrigues of cardinal Beaufort. This very extraordinary trial gave occaſion to a ſpecial ſtatute, 20 Hen. VI. c. 9. which enacts that peereſſes either in their own right, or by marriage, ſhall be tried before the ſame judicature as peers of the realm. If a woman, noble in her own right, marries a commoner, ſhe ſtill remains noble, and ſhall be tried by her peers: but if ſhe be only noble by marriage, then by a ſecond marriage, with a commoner, ſhe loſes her dignity; for as by marriage it is gained, by marriage it is alſo loſt. Yet if a ducheſs dowager marries a baron, ſhe continues a ducheſs ſtill; for all the nobility are *pares*, and therefore it is no degradation [t]. A peer, or peereſs (either in her own right or by marriage) cannot be arreſted in civil caſes [u]: and they have alſo many peculiar privileges annexed to their peerage in the courſe of judicial proceedings. A peer, ſitting in judgment, gives not his verdict upon oath, like an ordinary juryman, but upon his honour [w]: he anſwers alſo to bills in chancery upon his honour, and not upon his oath [x]; but, when he is examined as a witneſs either in civil or criminal caſes, he muſt be ſworn [y]: for the reſpect, which the law ſhews to the honour of a peer, does not extend ſo far as to overturn a ſettled maxim, that *in judicio non creditur niſi juratis* [z]. The honour of peers is however ſo highly tendered by the law, that it is much more penal to ſpread falſe reports of them, and certain other great officers of the realm, than of other men: ſcandal againſt them being called by the peculiar name of *ſcandalum magnatum*; and ſubjected to peculiar puniſhment by divers antient ſtatutes [a].

A PEER cannot loſe his nobility, but by death or attainder; hough there was an inſtance, in the reign of Edward the fourth,

[t] 2 Inſt. 50.
[u] Finch. L. 355. 1 Ventr. 298.
[w] 2 Inſt. 49.
[x] 1 P. Wms. 146.
[y] Salk. 512.
[z] Cro. Car. 64.
[a] 3 Edw. I. c. 34. 2 Ric. II. ſt. 1. c. 5. 12 Ric. II. c. 11.

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